

DATE OF COUNCIL MEETING: February 11, 2013

SPONSORS: (ORDINANCE OR RESOLUTION) Sean Allen

(1% Sales Tax Funding/Years)	N/A
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CONTACT PERSON: Jim Flesher PHONE: 637-6286 DEPT: Planning/Development

OTHER GOV'T AGENCIES AFFECTED: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

Agenda Item approved / reviewed by :

General Comments: The City of Cheyenne Planning Commission recommended denial of the above described Zone Change at its meeting on February 4, 2013. See the attached Staff Report for more information.

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Engineering Tech Branch City Clerk's Office

Development Office

STAFF REPORT

Bluffs 9th Filing Summation

Zone District Map Amendment Process

CASE NUMBER: Zone Chng-12-00016

FILE CODE: TBA-Z

PREPARED BY: Jim Flesher

MEETING January 7, 2013 – Planning Commission

DATES: January 14, 2013 – City Council

Required documents submittal:

All required documents have been submitted and reviewed by staff.

- Complete Application
- Zoning Map

STAFF REPORT UPDATE (2/5/13): At its regular meeting Monday, February 4, 2013, the City of Cheyenne Planning Commission recommended **denial** of the Zone Change from A-1 (County) to MR-2, Medium-Density Residential (“Developing”) by a vote of 3 to 0. The recommendation was made pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC, based on the issues relating to exclusion of the stormwater detention pond from the project, access from Converse to Ogden, pedestrian connectivity from the subdivision to Anderson Elementary School, the large block size, and issues relating to the open space requirement.

STAFF REPORT

Bluffs 9th Filing

Zone District Map Amendment Process

CASE NUMBER:

Zone Chng-12-00016

FILE CODE: TBA-Z

PREPARED BY:

Jim Flesher

PRE-APPLICATION MEETINGS:

None

SUBMITTED:

December 3, 2012

OWNER:

United Western Corporation c/o Frank Cole
2220 Dell Range Blvd, Suite 200
Cheyenne, WY 82009-4960

634-4577

AGENT/
APPLICANT:

Steil Surveying Services c/o Casey Palma
PO Box 2073
Cheyenne, WY 82003

634-7273

PROJECT:

Bluffs 9th Filing

WORK DESCRIPTION:

Zone Change

LOCATION:

1) Legal Description:

A portion of the East ½ of the East ½ of Section 20, and a portion of the Southwest ¼ of the Southwest ¼ of the Northwest ¼ of Section 21, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming (annexation in process)

2) General Location:

Approximately 1,500 feet north of the intersection of Converse and Ogden

3) Address:

TBD

SIZE: Total Site:

8.84 acres

Zone Change Area:

8.84 acres

CURRENT ZONING:

A-1 Agriculture (County)

PROPOSED ZONING:

MR-2, Medium-Density Residential (“Developing”)

EXISTING LAND USE:

Vacant land

PROPOSED LAND USE:

Residential (preliminary plat in process)

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant	A-1	County
South	Single-family homes, Detention pond	MR-1, P	City
East	Single-family homes	MR-2	City
West	Vacant	P, A-1	County

PROJECT DATA

The subject property is 8.8 acres of a 66-acre area owned by the applicant (either with family members or through a corporation or partnership). The proposed plat contains 28 buildable lots. The proposed MR-2 zoning allows single-family detached dwellings with a minimum lot size of 6,000 square feet, most of the proposed lots are over 9,000 square feet. 28 single family lots are proposed.

For stormwater management the plat proposes to utilize a city maintained stormwater facility south of the site and a stormwater facility east of the site recently developed in the County. The pond which was developed in the county did not undergo subdivision review and approval or design review and approval by the City. The proposal terminates Apache Street and Pattison Avenue into a cul-de-sac and proposes no access onto Converse Avenue.

The application proposes dedicating narrow strips of land along Converse Avenue and Ogden Road to be developed and maintained by the City as open space.

An annexation and preliminary plat were submitted concurrently.

ZONE CHANGE ANALYSIS SUMMARY

Based on the review of City policies and standards discussed in this report, staff recommends denial of this project. Although the zone change by itself has the potential to be accommodated at this location, a number of deficiencies are associated with the plat application. The plat application is recommended for denial due primarily to deficiencies regarding transportation system requirements and open space requirements.

In the absence of a supporting transportation and open space systems, zoning this parcel for urban residential uses is not appropriate and not recommended for approval. Please review the plat staff report for a more detailed analysis of the subdivision issues.

A brief overview of the concerns identified in the plat review is provided here in summary. (1) The application does not reflect extension of the street connecting Converse Avenue to Ogden Road. Half of the street has already been platted with the parcel to the north and extending existing platted streets is required. The street is also referenced in the transportation master plan and critical for the provision of a four way intersection onto Converse Avenue. (2) The application claims an existing detention pond as an exception to the open space requirement, but the stormwater detention pond in question is not designed or used as a park or usable open space. Also the open space provided in the proposal does not appear to meet the design criteria to meet the open space requirement. Please review the plat staff report for a more detailed analysis of the subdivision issues.

ZONE CHANGE ANALYSIS

Review of a zone change is organized by analysis of the review criteria described in the procedures for a zoning map amendment as described in Section 2.2.1.d. The purpose of these review criteria is to provide a consistent review and discussion for zone change applications.

1 ||Policies | Physical Patterns | Comprehensive Plan - The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

The proposal as a whole is not substantially consistent with the comprehensive plan. These deficiencies relate primarily to the subdivision which relate to the organization and design lots and block, streets, stormwater systems and open space systems established with the proposal. If these broader issues are resolved the proposed zoning proposal of large lot single family units is generally consistent with the comprehensive plan.

Three primary concerns are raised by reviewing PlanCheyenne. Those questions relate to the transportation network system, parks and open space and fiscal responsibility of the City.

Below (Figure 1) is an excerpt from the PlanCheyenne future land use map. The project area is identified with a star. The wide hatch on the project area designates mixed use commercial emphasis (MU-C) which transitions to

the north into mixed use residential emphasis with the thin hatch (MU-R). The dashed streets crossing the larger area are collector streets in the master transportation plan. The project are (star) is a combination of mixed use residential emphasis and urban residential land uses.

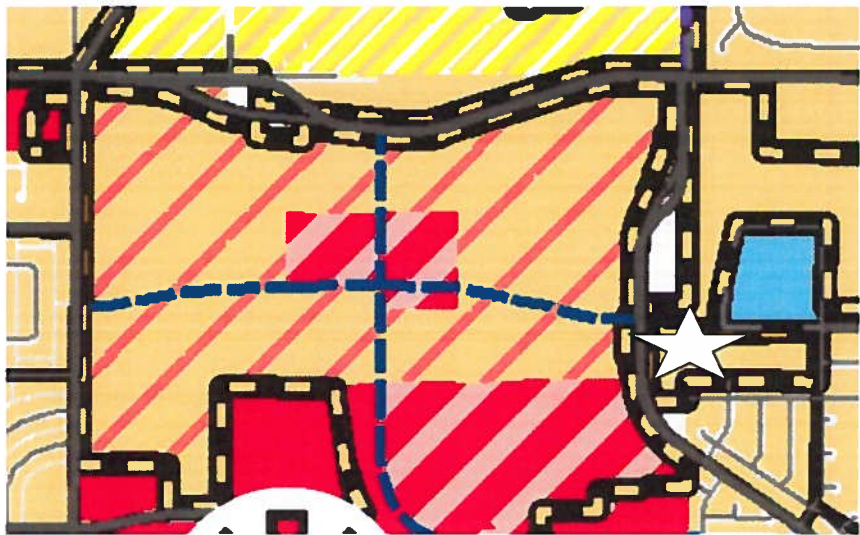


Figure 1: PlanCheyenne future land use map illustrating collector streets with dashed lines.

Relating to the transportation network system, PlanCheyenne lays out a basic street network with a collector type street bisecting Section 20 (see Figure 1) on the west side of Converse Avenue. On Figure 1 Converse Avenue is the north/south street west of the project area. The collector connects to the east with a four-way intersection on Converse Avenue at or near the project location. A purpose of a four way intersection is to have at least on connection between the two neighborhoods and to organize accesses to avoid unnecessary traffic conflicts. The vacant property to the north has already dedicated half of the street width in anticipation of this proposal submitting the same. The omission of any right-of-way along the north side of this plat is a significant deviation from the transportation master plan.

PlanCheyenne anticipates the growth of park and open space to be similar to or greater to what has been developed in the City in the past ((Foundation 6 – Creating a legacy of Parks, open spaces and trails). Viable open space is not proposed with this development.

Relating to fiscal responsibility, the community has invested millions of dollars in developing a functional street network in this area. The development of Storey Boulevard and Converse Avenue represent significant investments by the community. The development proposals along Converse Avenue underutilize and potentially degrades this investment with few access points and where there are access points they are not aligned with 4 way intersections.

2 || Compatibility - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas;*

Generally this small expansion of large lot single family next to existing large lot single family would appear compatible. However, the compatibility with the undeveloped parcel to the north may be lacking.

The parcel to the north has already platted half of a street expected to connect Converse Avenue to Ogden Road. This proposal would preclude that street extension and have an impact on functionality of the parcel to the north.

3 || Suitability | Existing and proposed zoning - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject*

property for development according to the standards and uses of the proposed zoning district;

Currently the land is zone agricultural in the county. The current agricultural zone district is not appropriate for any sort of urban development. By comparison the MR2 zone district is intended for urban residential development and appropriate for development at this location, provided site and platting requirements are met.

4 || Zoning and Subdivision - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;*

Significant deviations are proposed from the subdivision standards with this project and the plat is not recommended for approval. Primary concerns relate to the lack of a local street network and open space system being proposed for the surrounding areas. Reasonable alternatives appear to be available which substantially comply with requirements. Please see preliminary plat staff report for a detailed analysis.

5 || Intent of the Zoning District - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

Zoning of this residential use requires a connected transportation system meeting minimum City standards which is a concern with the platting of this project.

6 || Zoning Standards | Alternatives - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

The lots appear capable of accommodating single family residential development. All of the Lots are over 9,000 square feet, and will be evaluated for setback and related standards as Lot Type DD5 for lots over 9,000 square feet.

7 || Review Recommendations - *The review and recommendations of other reviewing bodies.*
None

8 || Health Safety and Welfare - *The application is not harmful to the public health, safety, and welfare.*
The City's zoning codes, regulations plans and policies are adopted by a public process under the umbrella of protecting the health safety and welfare reflecting the community's goals. No additional issues have been identified not already addressed above.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

No review comments applicable to zone change

Reviewing Agencies with No Comment: City Attorney, Laramie County Assessor, Development, GIS

Reviewing Agencies Not Responding: n/a

Encl: Zone Change Map
Photo Exhibit/Aerial

cc: Owner
Agent
File

ORDINANCE NO. _____

ENTITLED: **“AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENT, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM A-1 AGRICULTURAL AND RURAL RESIDENTIAL DISTRICT TO MR-2 MEDIUM DENSITY RESIDENTIAL – DEVELOPING DISTRICT FOR A TRACT OF LAND SITUATED IN A PORTION THE EAST HALF OF THE EAST HALF (E½E½) OF SECTION 20 AND A PORTION OF THE SOUTHWEST QUARTER OF THE SOUTHWEST QUARTER OF THE NORTHWEST QUARTER (SW¼ SW¼ NW¼) OF SECTION 21, T.14N., R.66W., 6TH P.M., CHEYENNE, LARAMIE COUNTY, WYOMING, TO BE KNOWN AS THE BLUFFS, 9TH FILING (LOCATED APPROXIMATELY 1500 FEET NORTH OF THE INTERSECTION OF CONVERSE AVENUE AND OGDEN ROAD).”**

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

- Section 1. That the owner(s) of the property described herein, has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).
- Section 2. That on February 4, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended denial of said zone change.
- Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.
- Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a tract of land situated in a portion the East Half of the East Half (E½E½) of Section 20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter (SW¼ SW¼ NW¼) of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as The Bluffs, 9th Filing, is hereby changed to MR-2 Medium Density Residential-Developing.
- Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.
- Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.
- Section 7. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated *The Bluffs, 9th Filing* final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

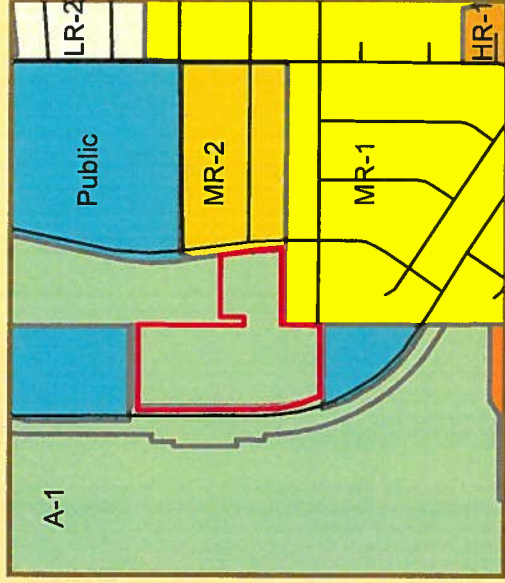
RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

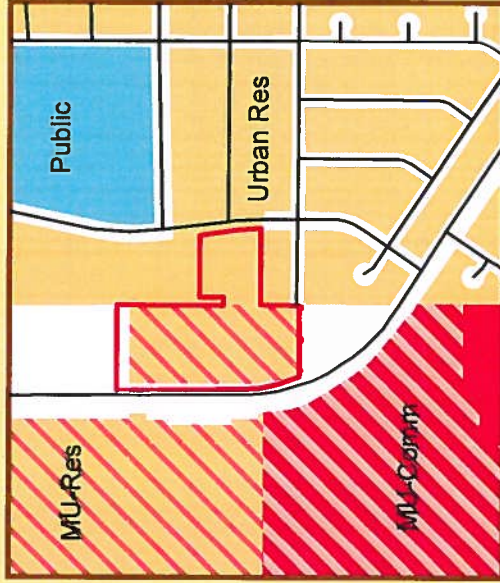
CAROL INTLEKOFER, CITY CLERK

publish date: _____

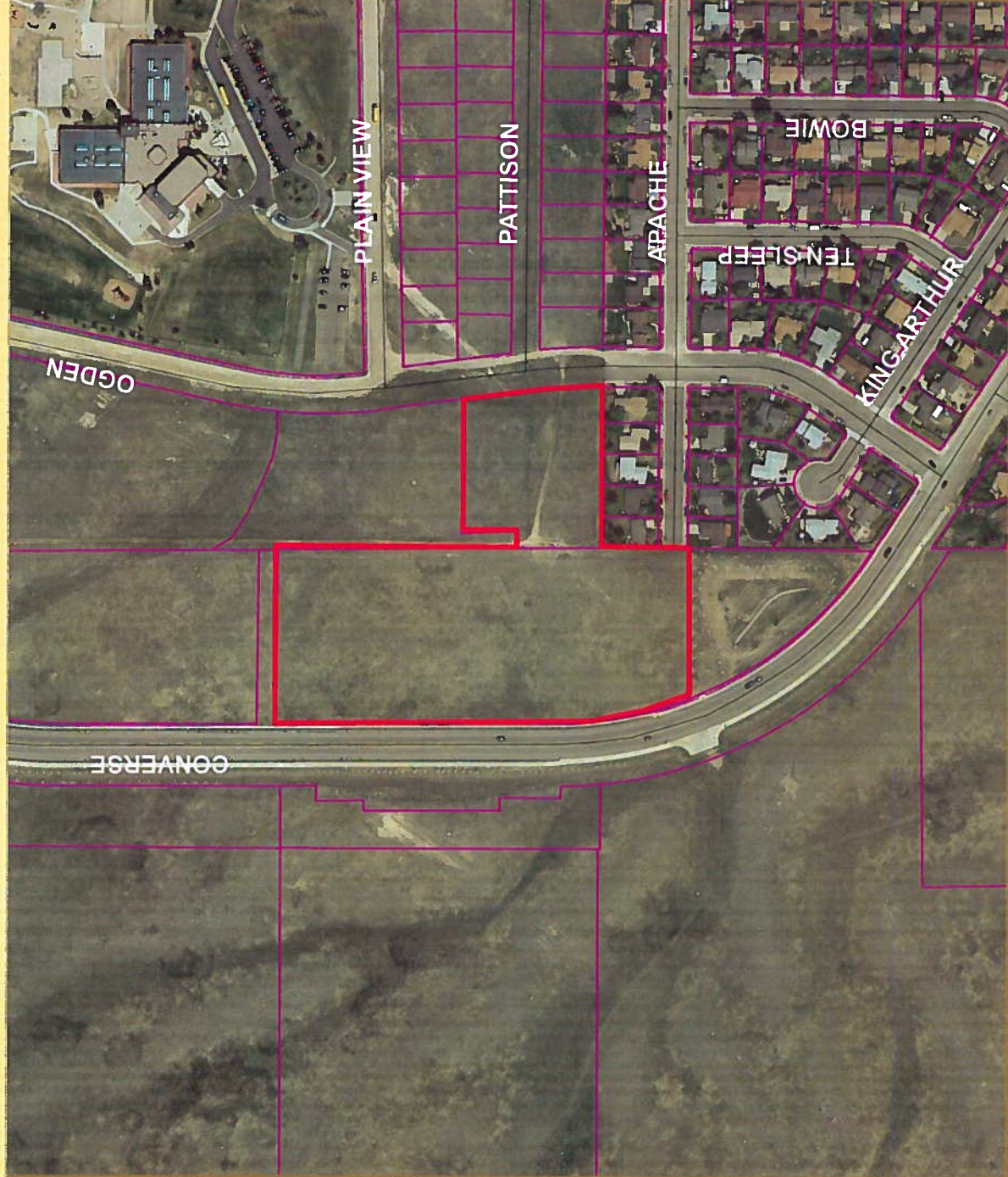
Zone Districts



Future Land Use Map



Bluffs 9th Filing Preliminary Plat - 1,500' North of Converse & Ogden



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCGIS) Program and is for display purposes only. The CLCGIS reserves its sovereign and governmental immunity in allowing access to or use of this data.

2010 Aerial

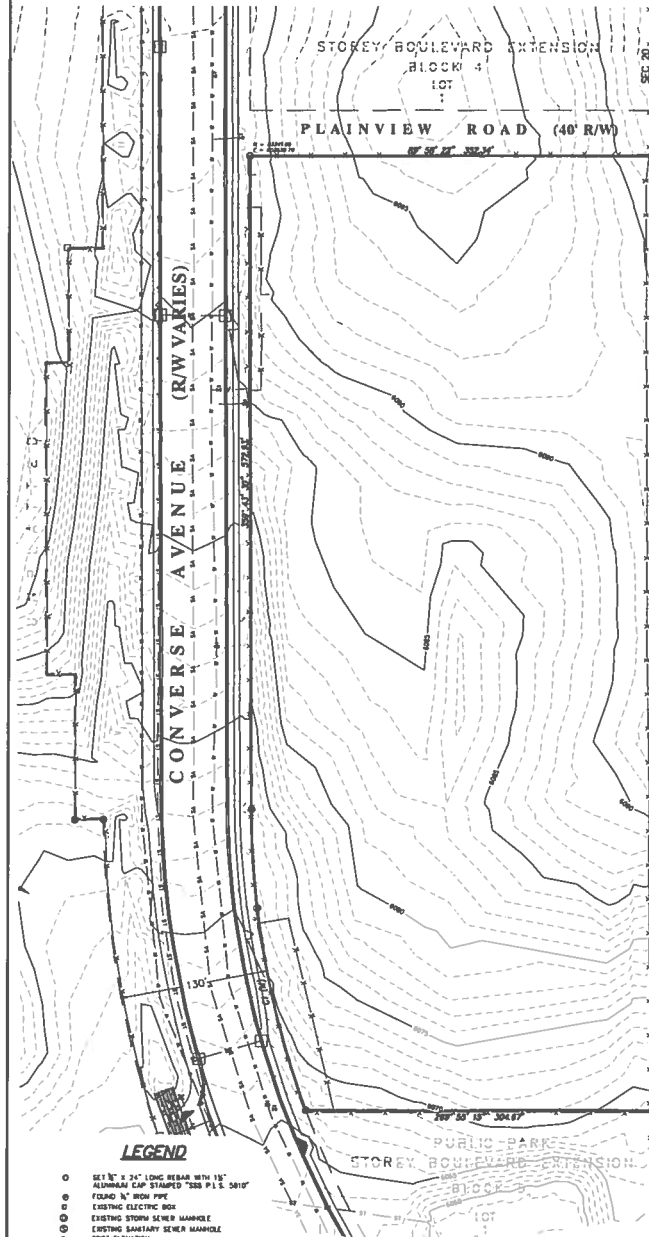
1 in = 333 ft



Ownership

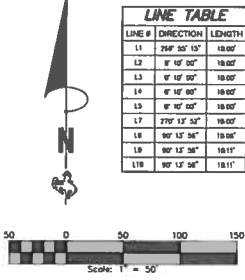
PORION OF E1/2E1/2
SECTION 20 & PORION OF
SW1/4SW1/4NW1/4 SECTION 21





CURVE TABLE - BOUNDARY & CENTERLINE				
CURVE #	DELTA	RADIUS	CHORD AZIMUTH	CHORD LENGTH
C1	20° 12' 00"	748.00'	349° 30' 30"	259.77'
C2	0° 18' 58"	1183.30'	176° 08' 38"	123.36'

CURVE TABLE - LOT LINES				
CURVE #	DELTA	RADIUS	CHORD AZIMUTH	CHORD LENGTH
C3	14° 44' 22"	316.00'	161° 14' 35"	79.72'
C4	0° 00' 00"	748.00'	341° 59' 30"	79.74'
C5	17° 08' 04"	316.00'	124° 18' 08"	38.87'
C6	5° 22' 00"	748.00'	347° 44' 52"	71.56'
C7	5° 22' 00"	748.00'	353° 11' 20"	70.46'
C8	3° 31' 13"	748.00'	357° 46' 33"	80.31'
C9	11° 07' 01"	316.00'	127° 09' 52"	83.33'
C10	49° 17' 33"	316.00'	232° 21' 39"	41.91'
C11	0° 00' 00"	316.00'	358° 04' 47"	31.89'
C12	49° 17' 33"	316.00'	319° 51' 30"	34.55'
C13	0° 00' 00"	316.00'	341° 59' 30"	34.55'
C14	0° 00' 00"	316.00'	341° 59' 30"	34.55'
C15	17° 08' 04"	316.00'	124° 18' 08"	38.87'
C16	5° 22' 00"	748.00'	347° 44' 52"	71.56'
C17	5° 22' 00"	748.00'	353° 11' 20"	70.46'
C18	3° 31' 13"	748.00'	357° 46' 33"	80.31'
C19	11° 07' 01"	316.00'	127° 09' 52"	83.33'
C20	49° 17' 33"	316.00'	232° 21' 39"	41.91'
C21	0° 00' 00"	316.00'	358° 04' 47"	31.89'
C22	49° 17' 33"	316.00'	319° 51' 30"	34.55'
C23	0° 00' 00"	316.00'	341° 59' 30"	34.55'
C24	0° 00' 00"	316.00'	341° 59' 30"	34.55'
C25	17° 08' 04"	316.00'	124° 18' 08"	38.87'
C26	5° 22' 00"	748.00'	347° 44' 52"	71.56'
C27	5° 22' 00"	748.00'	353° 11' 20"	70.46'
C28	3° 31' 13"	748.00'	357° 46' 33"	80.31'
C29	11° 07' 01"	316.00'	127° 09' 52"	83.33'
C30	49° 17' 33"	316.00'	232° 21' 39"	41.91'



LINE TABLE		
LINE #	DIRECTION	LENGTH
L1	249° 55' 15"	18.00'
L2	0° 18' 58"	18.00'
L3	0° 18' 58"	18.00'
L4	0° 18' 58"	18.00'
L5	0° 18' 58"	18.00'
L6	270° 12' 52"	18.00'
L7	270° 12' 52"	18.00'
L8	0° 18' 58"	18.00'
L9	0° 18' 58"	18.00'
L10	0° 18' 58"	18.00'

LEGEND

- SET 1" x 2" LONG NEAR WITH 1/2" ALUMINUM CAP STAMPED "SSS P.E.S. 5/10"
- EXISTING ELECTRIC POLE
- EXISTING STORM SEWER MANHOLE
- EXISTING SANITARY SEWER MANHOLE
- SPOT ELEVATION
- EXISTING WATER VALVE
- EXISTING UTILITY POLE
- EXISTING SINGLE POST SIGN
- EXISTING DECORATIVE TREE
- EXISTING CITY TREE
- EXISTING TELEPHONE PEDESTAL
- EXISTING SIGN
- EXISTING OVERHEAD ELECTRIC LINES
- EXISTING BITUMINOUS SURFACE
- EXISTING CONCRETE SURFACE
- EXISTING GRAVEL SURFACE
- DRAINAGE ARROW
- EXISTING WATER LINE
- EXISTING SANITARY SEWER LINE
- EXISTING STORM SEWER LINE
- PINK LINES DESIGNATED THIS PLAT

NOTES

- BASES OF AZIMUTH - CITY OF CHEYENNE DATUM REFERENCED FROM CITY CORNER MONUMENTS "TALL RANGE HOL" & "TALL RANGE HOL 4 HOL"
- NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN FEMA SPECIAL 100-HAZARD FLOOD HAZARD AREA AS SHOWN ON FIRM PANEL # 06070001F, DATED JANUARY 17, 2007.
- WATER AND SEWER TO BE PROVIDED BY CITY OF CHEYENNE DOPU.
- ALL UTILITIES TO BE PROVIDED IN ADJACENT RIGHT-OF-WAY.

LAND DESCRIPTION

KNOW ALL PERSONS BY THESE PRESENTS THAT: United Western Corporation, a Wyoming Corporation, owner in fee simple of the following described tracts of land:

Parcel 1
Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming.
Section 20: A portion of the E1/2 E1/2, being more particularly described as follows:
Beginning of the E1/4 corner of said Section 20; thence 178°-55' 22", a distance of 177.18 feet; thence 280°-56' 41", a distance of 304.32 feet to a point on the west boundary of the Converse Avenue right-of-way; thence northwesterly along said Converse Avenue boundary line along a curve common to the northeast, having a radius of 748.30 feet and a central angle of 30°-47' 28" (chord azimuth of 349°-38' 18", chord distance of 288.34 feet); thence 308°-41' 18", a distance of 572.83 feet; thence 88°-58' 31", a distance of 352.38 feet; thence 178°-45' 03", a distance of 680.39 feet to the point of beginning.
Containing 291,063d (6.60 acres) more or less.

Parcel 2
Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming.
Section 21: A portion of the SW1/4 SW1/4 NW1/4, being more particularly described as follows:
Beginning of the SW1/4 corner of said Section 21; thence 358°-43' 03" for a distance of 188.01 feet, to a point on the west boundary of a 40 foot Board of Public Utilities Easement (recorded in Book 794 Page 555 of the Laramie County Office of Records); thence 90° 13' 40", a distance of 40.00 feet to a point on the east boundary of said easement; thence 358°-43' 03" along said east boundary line, a distance of 120.00 feet; thence 107° 13' 46", a distance of 282.30 feet to a point on the west boundary of Ogden Road right-of-way; thence 171° 54' 47" along said Ogden Road boundary line, a distance of 138.50 feet; thence southeasterly along said Ogden Road boundary line along a curve common to the southwest, having a radius of 1183.50 feet and a central angle of 08° 18' 02" (chord azimuth of 170° 54' 18", chord distance of 173.36 feet); thence 270° 13' 48" a distance of 332.46 feet to the point of beginning.
Containing 84,228d (2.18 acres) more or less.

Has caused the same to be surveyed, re-platted and shown as THE BLUFFS 9TH FILING does hereby declare the subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their duties and do hereby grant the permits and easements for the purposes indicated herein.

United Western Corporation, a Wyoming Corporation

Frank M. Cole, President

ACKNOWLEDGEMENT

STATE OF WYOMING }
COUNTY OF LARAMIE } ss
The foregoing instrument was acknowledged before me this ____ day of _____, 2012, by Frank M. Cole of United Western Corporation.

Notary Public, Laramie County, Wyoming

My Commission Expires: _____

ZONING

EXISTING ZONING: A1
PROPOSED ZONING: UE-2

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ZONE CHANGE MAP

FOR THE BLUFFS 9TH FILING

SITUATED IN THE E1/4 OF SECTION 20, AND THE SW1/4NW1/4 OF SECTION 21: T.14N., R.66W., 6TH P.M., LARAMIE COUNTY, WYOMING.

Prepared October, 2012

STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1102 W. 19th ST., CHEYENNE, WY. 82001 (307)834-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 (307)382-8768

